

Court No. - 39

Case :- WRIT - C No. - 26629 of 2020

Petitioner :- Sunil Kumar

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Mohd. Israr, Parvez Alam

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no. 1 and Shri Narendra Kumar Tiwari, learned counsel appearing on behalf of respondents no. 2 to 4.

The instant petition has been filed seeking following reliefs :

"(i) Issue a writ, order or direction in the nature of **Certiorari** quashing the impugned Demand Notice dated 11.09.2020 issued by respondent No. 3 (Annexure No. 5 to this writ petition),

(ii) Issue an appropriate writ, order or direction in the nature of **MANDAMUS** directing the respondent No. 3 to issue Permanent Disconnection Certificate of connection/consumer No. 900/5012/188486 in favour of the petitioner w.e.f. 24.05.2018."

Learned counsel for the petitioner submits that he was having connection of electricity for commercial purposes which was installed on 31.12.2018. As the flour mill was not running, he has moved an application dated 24.05.2018 for disconnection of the electricity and thereafter another application was given on 03.12.2018 which have duly been communicated to the respondent but the same have not been decided till date and by the impugned demand notice dated 11.09.2020, recovery citation has been issued against the petitioner.

Learned counsel appearing on behalf of Power Corporation submits that the petitioner has a remedy to approach the authority concerned and the respondent shall taken an appropriate action under Clause 4.38 of the Electricity Supply Code, 2005 for permanent disconnection of the electricity. As such, the petitioner may approach the concerned authority by filing a fresh representation which shall be considered and an appropriate order shall be passed, subject to the condition that the petitioner shall deposit the requisite amount.

In view of the aforesaid facts and circumstances of the case, this writ petition is **disposed of** with a direction to the petitioner to file a fresh representation within a period of two weeks from

today for disconnection of the electricity, which shall be considered and decided by the authority concerned under Clause 4.38 of the Electricity Supply Code, 2005, after giving due opportunity of hearing to the petitioner.

Order Date :- 11.1.2021

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